



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35820163

Date: JAN. 15, 2025

Appeal of National Benefits Center Decision

Form I-360, Petition for Special Immigrant Juvenile

The Petitioner seeks classification as a special immigrant juvenile (SIJ) under sections 101(a)(27)(J) and 204(a)(1)(G) of the Immigration and Nationality Act (the Act), 8 U.S.C. §§ 1101(a)(27)(J) and 1154(a)(1)(G). The Director of the National Benefits Center (Director) denied the Form I-360, Petition for Special Immigrant Juvenile (SIJ petition) because there were material inconsistencies in the record.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will withdraw the Director's decision and remand the matter for entry of a new decision consistent with the following analysis.

I. LAW

To establish eligibility for SIJ classification, petitioners must show that they are unmarried, under 21 years old, and have been subject to a state juvenile court order determining that they cannot reunify with one or both parents due to abuse, neglect, abandonment, or a similar basis under state law. Section 101(a)(27)(J)(i) of the Act; 8 C.F.R. § 204.11(b).¹ Petitioners must have been declared dependent upon the juvenile court, or the juvenile court must have placed them in the custody of a state agency or an individual or entity appointed by the state or the juvenile court. Section 101(a)(27)(J)(i) of the Act; 8 C.F.R. § 204.11(c)(1). The record must also contain a judicial or administrative determination that it is not in the petitioners' best interest to return to their or their parents' country of nationality or last habitual residence. Section 101(a)(27)(J)(ii) of the Act; 8 C.F.R. § 204.11(c)(2).

U.S. Citizenship and Immigration Services (USCIS) has sole authority to implement the SIJ provisions of the Act and regulation. Homeland Security Act of 2002, Pub. L. No. 107-296, §§ 471(a), 451(b), 462(c), 116 Stat. 2135 (2002). SIJ classification may only be granted upon the consent of the Secretary of the Department of Homeland Security (DHS), through USCIS, when the petitioner meets all other

¹ The Department of Homeland Security issued a final rule, effective April 7, 2022, amending its regulations governing the requirements and procedures for petitioners who seek SIJ classification. See Special Immigrant Juvenile Petitions, 87 Fed. Reg. 13066 (Mar. 8, 2022) (*revising* 8 C.F.R. §§ 204, 205, 245).

eligibility criteria and establishes that the request for SIJ classification is bona fide, which requires the petitioner to establish that a primary reason the required juvenile court determinations were sought was to obtain relief from parental abuse, neglect, abandonment, or a similar basis under State law. Section 101(a)(27)(J)(i)–(iii) of the Act; 8 C.F.R. § 204.11(b)(5). USCIS may also withhold consent if evidence materially conflicts with the eligibility requirements such that the record reflects that the request for SIJ classification was not bona fide. 8 C.F.R. § 204.11(b)(5).

II. ANALYSIS

In [REDACTED] 2023, when the Petitioner was 17 years old, the Family Court of the State of New York, [REDACTED] (Family Court) issued an order titled *ORDER APPOINTING GUARDIAN OF THE PERSON* appointing her mother, C-P-J-B-,² as her guardian in guardianship proceedings brought under sections 103(27) and 1707 of the New York Surrogate’s Court Procedure Act (N.Y. Surr. Ct. Proc. Act) and sections 115 and 661(a) of the New York Family Court Act (N.Y. Fam. Ct. Act). Accordingly, the Family Court issued *LETTERS OF GUARDIANSHIP OF THE PERSON OF A MINOR* to C-P-J-B-. In a separate order titled *ORDER - SPECIAL FINDINGS* (SIJ order), the Family Court determined, among other findings, that the Petitioner was dependent on the Family Court; reunification with the Petitioner’s father was not viable due to neglect and abandonment under applicable New York statutes and case law; and that it was not in her best interest to be removed from the United States and returned to Ecuador, her country of origin.

Based on the SIJ order, the Petitioner filed this SIJ petition in October 2023. In March 2024, the Director issued a notice of intent to deny (NOID) informing the Petitioner that there were material inconsistencies in the record. The Director explained the material inconsistencies as follows:

The Order you submitted provides the following: [C-P-J-B-] (Petitioner/Mother), upon taking the official oath and filing the designation as required by law, is appointed guardian of the person of [the Petitioner], and the Letters of Guardianship shall issue to the Guardian accordingly. The Order for appointing Guardian was based on facts you provided. The birth certificate provided states your mother is C-P-J-.³ However, in October of 2012, records indicate you traveled with your mother, M-B-A-, on a visit to Florida. These records indicate material inconsistencies with the court order you filed as to the identity of your biological mother. . . . Based on the information provided, USCIS cannot determine who is your biological mother.

The Petitioner was instructed to submit additional evidence in support her petition and to show why her petition should not be denied. In April 2024, the Petitioner submitted a letter requesting more time to respond, but ultimately, she did not submit any evidence responsive to the NOID. In August 2024, the Director denied the SIJ petition.

² We use initials to protect the privacy of individuals.

³ This is incorrect because the Petitioner’s birth certificate lists her mother’s full name as C-P-J-B-.

On appeal, the Petitioner submits her affidavit, birth certificate, as well as C-P-J-B-'s birth certificate. In her affidavit, the Petitioner explains that she first entered the United States on March 12, 2020, at El Paso, Texas. USCIS records indicate that the Petitioner entered the United States as an unaccompanied minor and was apprehended at or near El Paso, Texas on March 12, 2020. USCIS records also indicate that at the time of her entry, C-P-J-B- was listed as her mother. The Petitioner claims that C-P-J-B- has not used any other names, and she identifies M-B-A- as her maternal grandmother. The Petitioner states that she has not travelled to Florida, either in October 2012, or at any other time. She further claims that neither her mother C-P-J-B-, nor her grandmother M-B-A- ever travelled to Florida. We note that the Petitioner's birth certificate lists C-P-J-B- as her mother; and M-B-A- is listed on C-P-J-B-'s birth certificate as C-P-J-B-'s mother. Although the Director asserts that the Petitioner travelled to Florida with "her mother M-B-A-" in October of 2012, the Director has not provided sufficient information regarding this travel so that the Petitioner can meaningfully rebut this assertion. *See* 8 C.F.R. § 103.2(b)(16)(i) (requiring that a petitioner "be advised" of derogatory evidence on which USCIS relied in issuing an adverse decision). Based on her birth certificate and statement, the Petitioner has established by a preponderance of the evidence that C-P-J-B- is her biological mother. We therefore determine that the Petitioner has explained the inconsistencies detailed above and they no longer materially conflict with the eligibility requirements for SIJ classification.

Therefore, because the Petitioner has overcome the reasons for the denial, we will remand the matter for consideration of whether the Petitioner has established the remaining eligibility requirements for SIJ classification.

ORDER: The decision of the Director is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.